

26VECV03539 26VECV03539

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Tentative Ruling

Aboufazeli v. Hyundai Motor America, Case no. 26VECV03539

Hearing date August 27, 2026

Defendant Hyundai's Motion to Compel Arbitration - UNOPPOSED

Plaintiff Aboufazeli sues defendant Hyundai Motor America for alleged violations of the Song-Beverly Act. Defendant moves to compel arbitration. The motion is unopposed.

Defendant requests judicial notice of the complaint. GRANTED pursuant to Evid. Code §452(d).

California public policy strongly favors arbitration. Code Civ. Proc. §1280 et seq., *Madden v. Kaiser Found. Hosps.* (1976) 17 Cal.3d 699, 706. Under the California Arbitration Act, if there is a valid written agreement to arbitrate, arbitration is mandatory. Code Civ. Proc. §1281.2. The opposing party bears the burden of proving defenses to arbitrability, including unconscionability. See *Pinnacle Museum Tower Ass'n. v. Pinnacle Mkt. Dev. (US), LLC* (2012) 55 Cal.4th 223, 236. "[T]he doctrine of unconscionability has both a procedural and substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results." *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal. 4th 899, 910.

Defendant moves to compel arbitration, arguing the owner's handbook contained a warranty, which purports to be binding. See Decl. Ameripour, exh. 2. Defendant argues arbitration is mandatory under the Federal Arbitration Act ("FAA"), as the warranty is in writing, and the sale of vehicles is an interstate commerce activity. See 9 U.S.C. §2. Defendant argues the warranty subjects any Song-Beverly Act claim to arbitration under the FAA. Decl. Ameripour, exh. 2, p. 14.

Initially, a court must determine whether a valid agreement to arbitrate exists. *Mitsubishi Motors Corp. v. Soler Chrysler-Plymouth, Inc.* (1985) 473 U.S. 614, 626. Under California law, the party seeking to compel arbitration has the burden of proving its existence by a preponderance of the evidence. *Rosenthal v. Great W. Fin. Sec. Corp.* (1996) 14 Cal.4th 394, 413.

Defendant offers no written agreement containing an arbitration provision, nor any communications or other acts by plaintiff demonstrating the parties entered into an agreement to arbitrate. A unilateral, unsigned arbitration clause in an unsigned

owner's handbook is not sufficient evidence that a contract was formed. Defendant failed to meet its burden. Though the motion is not opposed does not relieve defendant from the burden of producing evidence of the parties' intent to arbitrate. DENIED.